Topic 5 — Fundamental Rights (मौलिक अधिकार) & Duties

Covers syllabus (click to expand)

Fundamental Rights: Overview | Art. 12 State | Art. 13 | Equality (14–18) | Freedom (19) | Reasonable restrictions | Exploitation (23–24) | Conviction (20) | Life & liberty (21) | Privacy | RTE (21A) | Arrest & PD (22) | Religion (25–28) | Culture & education (29–30) | Remedies (32/226) | Writs | Property (300A) | Emergency suspension | Eclipse / Severability / Waiver | FR vs DPSP (राज्य के नीति निदेशक तत्व) **DPSP & Duties:** DPSP 36–51 | Socialist / Gandhian / Liberal-Intellectual | UCC (44) | FR–DPSP conflict | Duties 51A | 42nd (42वां) & 86th facts

Sources baked in: Laxmikanth (FR / DPSP / Duties), Constitution Parts III–IVA, Drishti coaching map, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — Art. 14 vs 19 vs 21; which freedom is **not** in 19; Art. 20 three clauses; 86th/21A; exploitation vs equality; DPSP match traps **Last verified:** September 2026 — Ghatnachakra Extra Drills: FR Q1–Q169 + DPSP Q1–Q68 + Duties Q1–Q41; teaching gap-pass (FR history; FR–DPSP table; K.T. Shah; Swaran Singh members) **Current Affairs:** EWS 103rd upheld (*Janhit Abhiyan*, 2022); Privacy *Puttaswamy* 2017; Uttarakhand UCC (2024) awareness

N.1 Fundamental Rights — overview

- **Part III, Arts. 12–35.** Justiciable (courts enforce). Part III is often called the **Magna Carta of India**. Form is compared with the **US Bill of Rights**.
- Pre-Independence demands: the **Constitution of India Bill, 1895** (Tilak-inspired) is treated as the first explicit FR demand; the **Motilal Nehru Report (1928)** sought inalienable FRs; the **Karachi Congress (कांग्रेस) (1931)** under **Sardar Patel** (सरदार पटेल) adopted (अंगीकृत) the FR and National Economic Programme resolutions.
- **S. Radhakrishnan**: FRs are "a **pledge** to our people and a **pact** with the civilized world." **Nehru** (नेहरू): an FR should be made **permanent** in the Constitution, not fixed for a passing difficulty.
- Originally **seven** groups. **44th Amendment, 1978** removed **Right to Property** from Part III (now **Art. 300A**, legal right — see below). **Six** groups remain.
- Bind the **State** (Art. 12). Some (e.g. 17, 23, 24) also bind private persons. They are a guarantee against **arbitrary State action**.
- **Not absolute** — reasonable restrictions / other Part III limits. Can be amended, but **Basic Structure** cannot be destroyed (*Kesavananda* (केशवानंद भारती 1973)).
- Enforcement (except **Arts. 20 and 21**) can be suspended during a National Emergency under **Arts. 358 / 359** (after the 44th).
- **Art. 33–35:** Parliament may restrict FR of armed forces / police; martial-law indemnity; only Parliament legislates on certain FR punishments.

Six groups (present): Equality (14–18) | Freedom (19–22) | Against Exploitation (23–24) | Freedom of Religion (25–28) | Cultural and Educational (29–30) | Constitutional Remedies (32).

PYQ — UPPCS Prelims 2021, Q73

Who among the following person said for the Fundamental Rights “a pledge to our people and a pact with the civilized world”?

A. Pt. Jawahar Lal Nehru B. Dr. Bhim Rao Ambedkar C. Dr. Rajendra Prasad D. Dr. S. Radha Krishnan

Show answer

Logic: Quote attribution for Part III — Radhakrishnan, not Ambedkar or Nehru. **Ans: D — Dr. S. Radhakrishnan.**

Who enjoys which FR

Split fact: 15/16/19/29/30 = **citizens only**; 14/20/21/21A/22/23/24/25–28/32 = **all persons**.

Available to citizens only	Available to all persons (citizens + foreigners)
Arts. **15, 16, 19, 29, 30**	Arts. **14, 20, 21, 21A, 22, 23, 24, 25–28, 32**

: Equality before law (14) = citizens **and** non-citizens. Equality of opportunity in public employment (16) = **citizens only**.

N.2 Article 12 — State

For Part III, **State** includes: - Government and **Parliament** of India; Government and **Legislature** of each State - **Local authorities** (municipality, panchayat, etc.) - **Other authorities** within India or under the control of the Government of India

Other authorities (instrumentality test — *R.D. Shetty / Ajay Hasia*): body created by statute; government control over management; financial resources from government; public functions. **Judiciary** acting **administratively** can be State; purely judicial function is treated differently.

N.3 Article 13 — laws inconsistent with FR

Part III gate: laws inconsistent with Fundamental Rights are void to that extent; “law” is wide; constitutional amendments sit outside via 13(4).

- **13(1):** Pre-Constitution laws inconsistent with FR are **void to that extent**.
- **13(2):** State shall **not make** a law that takes away / abridges FR; such law is void.
- **13(3):** “Law” includes ordinance, order, bye-law, rule, regulation, notification, custom, usage.
- **13(4):** Nothing in Art. 13 applies to a **constitutional amendment** under Art. 368 (inserted by **24th Amendment** after *Golaknath* (गोलकनाथ 1967)).

> **Doctrines** of Eclipse, Severability, Waiver — see *Doctrines under Article 13* below. One-line: pre-1950 inconsistent law is *eclipsed*, not dead; valid parts of a statute can be *severed*; FRs generally **cannot be waived**.

N.4 Right to Equality — Articles 14–18

Art. 14 — Equality before law

Any person (not only citizens): equality before law + equal protection of laws.

- **Equality before law** = British (Dicey's rule of law; no special privileges).
- **Equal protection of laws** = US (equal treatment in equal circumstances).
- Permits **reasonable classification**; forbids **class legislation**.

Reasonable classification (two tests): 1. **Intelligible differentia** — the group is distinguishable 2. **Rational nexus** — the difference has a relation to the object of the law

Later addition — **no arbitrariness** test (*E.P. Royappa / Maneka*): any arbitrary State action violates 14, even without classification.

Rule of law (Dicey idea as applied): supremacy of law; equality before law; constitution as the result of ordinary law (UK) — in India the Constitution is supreme, but 14 is still the equality fact.

Exceptions to equality (Art. 14 does not apply fully): - **Art. 361** — President / Governor: not answerable to any court for exercise of official powers; no criminal proceedings / arrest during term. - **Art. 361A** — no liability for true reports of Parliament / State Legislature proceedings. - **Art. 105 / 194** — parliamentary / assembly privileges (no court action for speech/vote in the House). - Foreign sovereigns, diplomats, UN and its agencies (immunity).

PYQ — UPPCS Prelims 2024, Q36

Which Article of the Constitution of India guarantees equality before law?

A. Article 12 B. Article 14 C. Article 19 D. Article 21

Show answer

Ans: B — Article 14.

PYQ — UPPCS Prelims 2024, Q101

Which one of the following pairs is not correctly matched?

A. Equality before Law — Guaranteed to both citizens and non-citizens B. Equality of opportunity in public employment — Guaranteed only to Indian citizens C. Creating a new State — Power of Parliament D. Altering the name of a State — Power of a State Legislature

Show answer

Ans: D (name = Parliament, Art. 3). **A and B are correct FR facts** for this topic.

Art. 15 — Prohibition of discrimination

Citizens: State shall not discriminate on listed grounds; special provisions for women/children, SEBC/SC/ST, and EWS sit as enabling exceptions.

- **15(1):** State shall not discriminate on **religion, race, caste, sex, place of birth** (citizens).
- **15(2):** No disability on those grounds in access to shops, public restaurants, wells, tanks, bathing ghats, roads maintained wholly/partly out of State funds.
- **15(3):** Special provision for **women and children** — valid.
- **15(4):** Special provision for **SEBC / SC / ST** — **1st Amendment, 1951** (after *Champakam Dorairajan*).
- **15(5):** Reservation in **aided/unaided** educational institutions except minority institutions under 30 — **93rd Amendment, 2005**.
- **15(6):EWS** (not SC/ST/OBC (अन्य पिछड़ा वर्ग)) — admissions, including private unaided except minority — **103rd Amendment, 2019**; **10%**.

Art. 16 — Equality of opportunity in public employment

Citizens only: equality of opportunity in public employment; residence, backward-class reservation, and EWS are the exceptions.

- **16(1)–(2):** Equality of opportunity; no discrimination on religion, race, caste, sex, descent, **place of birth, residence**.
- **16(3):Parliament** (not State) may prescribe **residence** as a requirement for a class of State posts.
- **16(4):** Reservation for backward classes **not adequately represented** in services.
- **16(4A):** Reservation in **promotion** for SC/ST — **77th Amendment, 1995**; **consequential seniority** — **85th Amendment, 2001** (w.e.f. 1995).
- **16(4B):** Carry-forward / **catch-up** of unfilled reserved vacancies (backlog not subject to 50% for that year) — **81st Amendment, 2000**.
- **16(5):** Religious/denominational institution may reserve its offices for members of that religion/denomination.
- **16(6):EWS** reservation in posts — **103rd, 2019**.

Mandal facts (*Indra (इन्द्र) Sawhney*, 1992): 27% OBC; **50%** ceiling (extraordinary exceptions); **creamy layer** excluded; no reservation in **promotion** (later restored for SC/ST by 77th/85th). *Janhit Abhiyan* (2022): **EWS 10%** upheld; 50% ceiling not a bar to EWS in the same way. *M. Nagaraj* (2006) / *Jarnail Singh* (2018): SC/ST promotion reservation needs data on backwardness/representation + efficiency (Art. 335).

Art. 17 — Abolition of Untouchability

- Untouchability is **abolished**; its practice in **any form** is a **punishable offence**.
- **No reasonable restriction** — absolute.
- **Protection of Civil Rights Act, 1955** (renamed from Untouchability Offences Act). Also **SC/ST (Prevention of Atrocities) Act, 1989**.
- **Trap:** Untouchability is **Right to Equality (17)**, **not** Right against Exploitation (23–24).

Art. 18 — Abolition of titles

- No title (except **military** or **academic**) to be conferred by the State.
- Indian citizen shall not accept a title from a **foreign State**.
- Foreigner holding office of profit under the State needs President's consent for a foreign title.
- **Bharat Ratna / Padma (पद्मा)** awards are **not** "titles" in the Art. 18 sense (*Balaji Raghavan*, 1996) — cannot be used as prefixes/suffixes.

N.5 Right to Freedom — Article 19 + reasonable restrictions

Citizens only. Originally **seven** freedoms; **19(1)(f)** right to acquire, hold and dispose of **property** deleted by **44th Amendment, 1978**. Remaining six are subject to **reasonable restrictions** in **19(2)–(6)** — restriction must be by **law**, not executive whim; courts test reasonableness.

- **19(1)(a) Speech and expression** (includes **press**, commercial speech, hoisting national flag — as held): restricted under **19(2)** — sovereignty & integrity; security of State; friendly relations with foreign States; public order; decency/morality; contempt of court; defamation; incitement to an offence.
- **19(1)(b) Assemble peaceably and without arms:19(3)** — sovereignty & integrity; **public order**.
- **19(1)(c) Form associations / unions / co-operative societies** (97th added co-ops): **19(4)** — sovereignty & integrity; public order; **morality**.
- **19(1)(d) Move freely throughout India:19(5)** — interests of general public; protection of **Scheduled Tribes**.
- **19(1)(e) Reside and settle anywhere in India:19(5)** — same as movement.
- **19(1)(g) Practise any profession, occupation, trade (पण्याध्यक्ष) or business:19(6)** — general public; **professional/technical qualifications**; State may carry on a trade **to the exclusion of citizens** (State monopoly — **1st Amendment**).

Not in Art. 19: right to **property** (after 44th); right to **strike** (not a FR); right to **privacy** (Art. **21**, not 19).

PYQ — UPPCS Prelims 2024, Q99

Which of the following freedoms is not guaranteed by the Indian Constitution under Article 19?

A. Freedom to assemble peacefully and without arms B. Freedom to own, acquire and dispose of property C. Freedom to move freely throughout the country D. Freedom to practise any trade or profession

Show answer

Ans: B — property was 19(1)(f); deleted by **44th**; now **300A**.

N.6 Right against Exploitation — Articles 23–24

All persons; binds State **and private persons**; the exploitation pair is traffic/*begar* (बेगार) (23) and child labour in hazardous work (24).

- **23 Traffic in human beings and *begar*:** Prohibits traffic, *begar* and similar **forced labour**. Exception: State may impose **compulsory service for public purposes** (no discrimination on religion/race/caste/class).
- **24 Child labour (hazardous):** No child **below 14** in **factory (फैक्टरी), mine, or other hazardous employment**. Does **not** ban all child work (e.g. non-hazardous family work as statute now stands). Child Labour (Prohibition and Regulation) Act, 1986 / 2016 amendment.

Trap list — NOT exploitation: - Abolition of **untouchability** = **Art. 17** (Equality) - Protection of **minorities** = **Arts. 29–30** (see below)

PYQ — UPPCS Prelims 2024, Q103

Which of the following are envisaged by the Right against Exploitation in the Constitution of India?

1. Abolition of untouchability
2. Prohibition of human trafficking and forced labour
3. Prohibition of employment of children in factories and mines
4. Protection of interests of minorities

A. 2 and 3 B. 3 and 4 C. 1 and 2 D. 1 and 4

Show answer

Ans: A — 2 and 3 (Arts. 23 and 24). 1 = Art. 17; 4 = Arts. 29–30.

N.7 Article 20 — Protection in respect of conviction

All persons (citizens, foreigners, companies as relevant). **Three** protections only — nothing else.

- **20(1) Ex post facto:** No *conviction* for an act that was not an offence **when committed**. No **greater penalty** than what the law provided at the time of the act. Applies to **criminal** law, **not** civil / tax liability. **Benefit** of a reduced penalty can be given.
- **20(2) Double jeopardy:** No **prosecution and punishment** more than once for the **same offence**. Departmental enquiry + criminal trial can both run (different nature). “Same offence” ≠ same facts with a different legal charge in every case.
- **20(3) Self-incrimination:** No person **accused of an offence** shall be compelled to be a **witness against himself**. Protection is against **testimonial** compulsion — **not** against fingerprints, blood, DNA, search as such. *Selvi* (2010): narco / polygraph / BEAP cannot be forced.

Not in Art. 20: prohibition of **torture** (that is **Art. 21** / statutory). No “right to silence” as a separate numbered clause beyond 20(3).

PYQ — UPPCS Prelims 2023, Q20

Which of the following is not a part of Article 20 of the Constitution of India?

A. Prohibition against Self-Incrimination B. Double Jeopardy Clause C. Prohibition Against Torture D. Ex-post Facto Law

Show answer

Ans: C — Torture is not Art. 20.

N.8 Article 21 — Life and personal liberty

- "No person shall be deprived of his life or personal liberty except according to **procedure established by law**."
- **All persons** (citizens + foreigners).
- *A.K. Gopalan* (1950): any procedure in a valid law was enough. **Maneka Gandhi (1978):** procedure must be **fair, just and reasonable** — due-process *content* without the US phrase. Arts. **14, 19, 21** read together.

Judicial expansion (list — not encyclopaedia): Right to **livelihood** (*Olga Tellis*) · **privacy** · **health** · **shelter** · **speedy trial** · **legal aid** · **dignity** · **clean environment** · **education** (before 21A also read into 21) · against **torture / handcuffing** · **sleep** · **reputation** · against **solitary confinement** (as held).

Right to Privacy

- **K.S. Puttaswamy (2017)** — **9-judge** Bench: Privacy is a **Fundamental Right** under **Art. 21** (also tracing 14/19).
- Overruled the contrary reading (रीडिंग) of *M.P. Sharma* (1954) and *Kharak Singh* (1963) on this point.
- **Three-fold test** for State interference: (i) **legality** — law (ii) **legitimate aim** (iii) **proportionality**.
- Aadhaar follow-on: *Puttaswamy (Aadhaar)* 2018 — scheme largely upheld with carve-outs (e.g. private-entity use / some welfare linking limits as then held).

Article 21A — Right to Education

- Inserted by **86th Amendment, 2002**: State shall provide **free and compulsory** education to all children of the age **6–14**.
- Working statute: **RTE Act, 2009** (in force 1 Apr 2010). 25% EWS in private unaided (as provided).
- Same 86th also **recast Art. 45** (early childhood **below 6**) and added **Art. 51A(k)** (parent/guardian's duty) — see DPSP & Duties sections below.

PYQ — UPPCS Prelims 2022, Q12

The Right to Education was included in the Fundamental Rights by the—

A. Constitution (103rd Amendment) Act, 2019 B. Constitution (93rd Amendment) Act, 2005 C. Constitution (86th Amendment) Act, 2002 D. Constitution (71st Amendment) Act, 1992

Show answer

Ans: C — 86th Amendment, 2002. 103rd = EWS; 93rd = 15(5).

N.9 Article 22 — Arrest & detention + Preventive Detention

Two codes in one article.

Ordinary arrest (22(1)–(2)) — not available to enemy aliens / PD detenus

1. Right to be informed of the **grounds** of arrest
2. Right to **consult and be defended by a legal practitioner** of choice
3. Produce before the **nearest magistrate within 24 hours** (excluding journey time); no detention beyond that without magistrate's authority

Preventive detention (22(3)–(7))

- Detention **without trial** to prevent a future offence (security of State, public order, foreign affairs, supplies/services — as Parliament provides).
- Parliament may prescribe the **maximum** period and the procedure.
- Detention **beyond 3 months** needs an **Advisory Board** (judges of HC rank, as provided). **44th Amendment** sought to cut this to **2 months** — **not brought into force**; **3 months** still the working constitutional figure.
- Grounds of detention to be communicated; earliest opportunity to represent — but facts may be withheld if disclosure is against public interest.
- Statutes: **NSA, 1980**; **COFEPOSA, 1974**; others as in force.

> **:** PD is **expressly allowed** by the Constitution (unlike many liberal constitutions). Art. 22 is itself a FR that **regulates** PD, not a ban on it.

PD — quick facts

- **Preventive** = to **prevent** a future offence; **Punitive** = punishment **after** a proven offence.
- PD subjects appear in **both** Union List (संघ सूची) (Entry 9 — defence/foreign affairs/security of India) **and** Concurrent List (समवर्ती सूची) (Entry 3 — security of a State, public order, supplies/services).
- Detenu **cannot** claim 22(1)–(2) rights (lawyer / 24-hour magistrate) — those are for **ordinary** arrest.
- Key laws: **NSA 1980** (रासुका), **COFEPOSA 1974**, **PBMSECA 1980**, **UAPA** (यूएपीए) (as amended), State goonda/PD Acts.

N.10 Landmark FR cases (one-line facts)

Chronology spine: *Gopalan* (1950) → *Kesavananda* (1973) → *Maneka* (1978) → *Puttaswamy* (2017) → *Janhit Abhiyan* (2022).

- **A.K. Gopalan (1950):** Narrow view — each FR read separately; "procedure established by law" literal.
- **Champakam Dorairajan (1951):** FR over DPSP in conflict; led to **1st Amendment** (Art. 15(4)).
- **Golaknath (1967):** Parliament **cannot** amend FRs → reversed by **24th Amendment** + *Kesavananda*.
- **Kesavananda Bharati (1973): Basic Structure**; FRs amendable but not so as to destroy basic structure.

- **Maneka Gandhi (1978):** Art. 21 procedure must be **fair, just, reasonable**; Arts. 14, 19 and 21 linked.
- **Bachan Singh (1980):** Death sentence under IPC 302 is **not** violative of Arts. 14, 19 and 21 when applied for the rarest of rare.
- **Minerva Mills (1980):** Balance of FR and DPSP is basic structure; struck down parts of the 42nd.
- **Olga Tellis (1985):** Right to **livelihood** under Art. 21.
- **Indra Sawhney (1992):** 27% OBC, **creamy layer**, **50%** cap; Art. 16(4) read with Art. 335 efficiency.
- **Vishaka (1997):** Workplace sexual-harassment guidelines under Arts. 14, 19 and 21.
- **Unni Krishnan (1993):** Free education up to 14 read into Art. 21 (before **21A**).
- **Puttaswamy (2017):** Right to **Privacy** = FR under Art. 21 (Part III freedoms).
- **Janhit Abhiyan (2022): EWS 103rd** upheld.

N.11 Constitutional amendments touching Part III

Part III rewrite facts that UPPCS actually asks — 1st through 103rd.

- **1st (1951):** Added **15(4)**; **9th Schedule (9वीं अनुसूची) (31B)**; reasonable restrictions to 19.
- **24th (1971):** Parliament can amend FRs (**13(4) / 368(3)**) — after *Golaknath*.
- **42nd (1976):** Added **Fundamental Duties (51A)**; tried to give some DPSP primacy over FR (curbed by *Minerva Mills*).
- **44th (1978):Property** removed from Part III → **Art. 300A**; 20 & 21 **cannot** be suspended even in Emergency (359).
- **77th / 81st / 85th:** Promotion reservation (4A), backlog (4B), consequential seniority.
- **86th (2002):21A** (RTE); recast 45; **51A(k)**.
- **93rd (2005):15(5)** — reservation in private educational institutions.
- **97th (2011):** Co-operative societies added to **19(1)(c)**.
- **103rd (2019):EWS 10%** — 15(6) & 16(6).

N.12 Right to Freedom of Religion — Articles 25–28

All persons (25); India = **secular** State: no State religion; equal treatment; State can regulate secular activity linked to religion.

- **25 Freedom of conscience; profess, practise, propagate:** To **all persons**. Subject to public order, morality, health, other Part III rights. State may (a) regulate secular activity associated with religion (b) provide social welfare/reform + throw open **Hindu** religious institutions to all classes (Explanation: Sikhs, Jains, Buddhists included in “Hindus”; **wearing & carrying of kirpans** deemed part of Sikh religion).
- **26 Manage religious affairs (denomination):** Establish/maintain institutions for religious & charitable purposes; manage own affairs in matters of **religion**; own/acquire property; administer property **in accordance with law**.
- **27 No tax for promotion of a religion:** No person compelled to pay a **tax** whose proceeds are specifically appropriated for a **particular** religion. (A **fee** for regulation is allowed — tax vs fee trap.)

- **28 Religious instruction in institutions:Wholly** State-funded institution: **no** religious instruction. State-administered but established under an **endowment/trust**: instruction allowed. State-**recognised/aided** institution: instruction only with **consent** (of the person / guardian if minor).

> **Facts:** 25 has **propagate** (not force conversion). 27 = **tax**, not fee. 28 four-fold funding test.

N.13 Cultural & Educational Rights — Articles 29–30

Citizens:29 = any section (culture); **30** = **religious or linguistic minorities** and their institutions.

- **29(1) Conserve culture:Any section of citizens** (majority or minority) with a distinct language, script (लिपि) or culture may conserve it.
- **29(2) No denial of admission:** No citizen denied admission to a State-maintained / State-aided institution on grounds of religion, race, caste, **language**.
- **30(1) Minority institutions:Religious or linguistic minorities** may establish and administer educational institutions of their choice.
- **30(1A) Compensation:** If such institution's property is compulsorily acquired, the amount must not restrict the right (added **44th**).
- **30(2) No discrimination in aid:** State shall not discriminate against minority institutions in granting aid.

Key facts: - Constitution does **not define "minority"** — decided State-wise (*T.M.A. Pai*, 2002). Only **religious and linguistic** minorities (not caste/economic). - **29 = citizens (any section), 30 = minorities only** — 29 is broader in who, narrower in scope.

PYQ — UPPCS Prelims 2019, Q26

Assertion (A): Article 30 of the Constitution of India does not define the term 'minorities'. Reason (R): The Constitution recognises only linguistic and religious minorities.

A. Both (A) and (R) are true and (R) is the correct explanation of (A) B. Both (A) and (R) are true, but (R) is not the correct explanation of (A) C. (A) is true, but (R) is false D. (A) is false, but (R) is true

Show answer

Ans: B. Both true; R does not *explain* why 30 leaves "minority" undefined.

N.14 Right to Constitutional Remedies — Article 32 (+ 226)

- **Art. 32** is itself a **Fundamental Right** — Ambedkar: "**heart and soul** of the Constitution."
- SC is the **guarantor / protector** of FRs; can issue writs **only for FR** enforcement.
- **32(3):** Parliament may empower any other court to issue writs (not yet a general delegation).
- **Art. 32 cannot be suspended** except as provided during Emergency (Art. **359**) — and **never** for Arts. **20 & 21** (44th).

- **Art. 226 (HC):** writs for FR **and for any other legal right** — **wider** than 32. Territorial: cause of action within the HC's jurisdiction.

Point	Art. 32 (SC)	Art. 226 (HC)
Nature	Fundamental Right	Constitutional (not a FR)
Scope	**FR only**	FR **+ other legal rights**
Discretion	SC cannot ordinarily refuse (FR)	Discretionary
Suspension	Possible under 359 (not 20/21)	Not tied to 359 in the same way

PYQ — UPPCS Prelims 2023, Q11

Consider the following statements concerning the powers of the Supreme Court to issue certain writs to stop violation of Fundamental Rights—

1. The Supreme Court has power to issue writs like Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari for the enforcement of Fundamental Rights.
2. Parliament may by law empower any other court to exercise within its jurisdiction the powers given to the Supreme Court.

A. Both 1 and 2 B. Only 1 C. Only 2 D. Neither 1 nor 2

Show answer

Logic: Art. 32(2) five writs + Art. 32(3) Parliament may empower other courts. **Ans: A — Both.** (2) reflects Art. 32(3).

The Five Writs (पाँच प्रकार की रिटें)

English prerogative writs: SC under **32** (FR only); HC under **226** (wider). Prohibition vs Certiorari is the before/after trap.

- **Habeas Corpus** (बन्दी प्रत्यक्षीकरण — "to have the body" / सशरीर प्रस्तुत करना): against public **or private**; produce a detained person; test legality of detention.
- **Mandamus** (परमादेश — "we command" / हम आज्ञा देते हैं): against public authority / lower court / govt; compel performance of a **public duty**. **Not** against President/Governor, private person, or discretionary/contractual duty.
- **Prohibition** (प्रतिषेध — "to forbid" / रोकना या मना करना): against a **judicial / quasi-judicial** body; stop a lower court exceeding jurisdiction — issued **before** decision.
- **Certiorari** (उत्प्रेषण — "to be certified/informed" / पूर्णतया सूचित होना या मंगाना): judicial / quasi-judicial (now also administrative affecting rights); **quash** an order already passed / transfer case — **after** decision.
- **Quo Warranto** (अधिकार-पृच्छा — "by what authority" / किस अधिकार से): a person in a **public office**; test the legal right of a person to hold a substantive public office; any person may seek.

> **Traps:** Habeas Corpus lies even against a **private** person. Mandamus **not** against President/Governor personally. Prohibition = *before*, Certiorari = *after*. Quo Warranto only for a

> **public office** created by law.

N.15 Right to Property — Article 300A

- **44th Amendment, 1978** deleted **Art. 19(1)(f)** and **Art. 31** → property is **no longer a Fundamental Right**.
- Now **Art. 300A** (Part XII): "No person shall be deprived of his property save by **authority of law**." — a **constitutional / legal** right.
- Effect: deprivation needs a **valid law** (not mere executive order); but it is **not** enforceable under **Art. 32** as a FR (go to HC under 226 / ordinary suit).
- Only constitutional right **removed** from Part III so far.

N.16 Suspension of FR during Emergency

National Emergency only: 358 auto-kills Art. 19 (war/external aggression); 359 can bar court-enforcement of named FRs — never 20 & 21.

- **Art. 358:** On a **National Emergency due to war / external aggression**, **Art. 19** is **automatically suspended** (not for armed rebellion after 44th). Revives when Emergency ends.
- **Art. 359:** President may by order suspend the **right to move courts** for enforcement of specified FRs during any National Emergency — **except Arts. 20 and 21** (44th Amendment fact, after *ADM Jabalpur* 1976).

> **:** 358 = **only Art. 19**, war/external aggression, automatic. 359 = **other FRs by Presidential order**, never 20 & 21.

N.17 Doctrines under Article 13

Three doctrines on how Art. 13 treats inconsistent law — eclipse, severability, waiver.

- **Eclipse:** A **pre-Constitution** law inconsistent with FR is **not dead** — only *eclipsed*/dormant; becomes operative again if the FR is later amended to remove the conflict (*Bhikaji Narain*).
- **Severability:** Only the **inconsistent part** of a law is void; the valid part survives if separable (*A.K. Gopalan*, *R.M.D. Chamarbaugwalla*).
- **Waiver:** A citizen **cannot waive** his Fundamental Rights (FRs are for public interest, not just individual benefit) — *Basheshar Nath* (1959).

N.18 FR vs DPSP vs Legal Rights

Justiciable (USA) vs non-justiciable (Ireland); property after 44th is a **legal** right (300A), not a FR.

Point	Fundamental Rights (III)	DPSP (IV)
Source of idea	USA (Bill of Rights)	**Ireland**
Enforceable	**Yes** (Art. 32) — justiciable	**No** (Art. 37) — non-justiciable
Nature	Mostly **negative** (limits on the State)	**Positive** (State to secure ends)
Sanction	Legal (courts)	Moral and political
Aim	**Political** democracy	**Social and economic** democracy / welfare State
Focus	Individual welfare	Community welfare
Implementation	Automatically enforceable	Need **legislation**
Against	Mainly the State	Positive obligations on the State
Conflict	*Kesavananda / Minerva Mills* — **balance**; DPSP cannot destroy FR basic structure	39(b)(c) laws saved by **31C**
FR	Legal / Constitutional right	
----	----------	
In **Part III**; enforceable via **Art. 32** (SC)	Outside Part III (e.g. **300A**); enforced via ordinary law / **226**	
Guaranteed by Constitution	May be created/altered by ordinary law (except constitutional ones)	

> **K.T. Shah:** DPSP are "a cheque which is paid on Bank's Convenience" — criticism of non-enforceability.

N.19 Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy — Articles 36–51 (Part IV)

- **Non-justiciable** (Art. **37**) but **fundamental in governance**; State to apply in law-making. They do **not** impose a **legal** duty enforceable in court — moral/political instructions to legislature and executive.
- Borrowed from **Ireland**. Idea: instrument of instructions for a **welfare State** (Arts. **36–51**).

Classification (learn the buckets)

Study buckets only (not in the Constitution's text): Socialist / Gandhian / Liberal–Intellectual.

- **Socialist** (welfare / socio-economic justice): **38** (welfare, reduce inequality), **39** (resources, equal pay), **39A** (legal aid), **41** (work/education/assistance), **42** (work conditions, maternity), **43** (living

wage), **43A** (workers' participation), **47** (nutrition, public health).

- **Gandhian** (rural / decentralisation / weaker sections): **40** (village panchayats), **43** (cottage industry), **43B** (co-operatives), **46** (SC/ST/weaker sections), **47** (prohibition), **48** (cow slaughter / cattle).
- **Liberal–Intellectual** (modern/liberal governance): **44** (UCC), **45** (early childhood care <6), **48** (modern agriculture/animal husbandry), **48A** (environment), **49** (monuments), **50** (separation of judiciary–executive), **51** (international peace).

PYQ — UPPCS Prelims 2018, Q143

The Directive Principles of State Policy may be classified into which of the following parts for the sake of convenient study?

A. Socialist B. Liberal intellectualistic C. Gandhian D. All of the above

Show answer

Logic: Constitution has no textual classification — Socialist / Gandhian / Liberal–Intellectual is for study only. **Ans: D — All of the above.**

DPSP — article-by-article (36–51 elaborated)

Arts. 36–51, borrowed from **Ireland**, non-justiciable (**37**). Bucket tags are study labels only.

- **36:** "State" has the **same meaning** as in Art. 12.
- **37:** DPSP are **not enforceable** by any court, but are **fundamental in governance**; State's **duty to apply** them in law-making.
- **38 (Socialist):** Secure a **social order** for the welfare of the people (justice — social, economic, political). **38(2)** (44th): minimise inequalities in **income, status, facilities, opportunities**.
- **39(a) (Socialist):** Adequate **means of livelihood** to all citizens (men & women).
- **39(b) (Socialist):Ownership & control of material resources** distributed to best subserve the **common good** (↔ 31C).
- **39(c) (Socialist):** Operation of economy should **not** result in **concentration of wealth** (↔ 31C).
- **39(d) (Socialist):Equal pay for equal work** for men and women.
- **39(e)–(f) (Socialist):** Health & strength of workers/children not abused; children given opportunities to develop in a healthy manner (39(f) recast by 42nd).
- **39A (Socialist):Equal justice and free legal aid — 42nd Amendment, 1976**.
- **40 (Gandhian):** Organise **Village Panchayats** as units of self-government (seed of Part IX (भाग IX) / 73rd).
- **41 (Socialist):** Right to **work, education, public assistance** (unemployment, old age, sickness, disablement) within economic capacity.
- **42 (Socialist):** Just & humane **conditions of work** and **maternity relief**.
- **43 (Gandhian):Living wage**, decent standard of life, social & cultural opportunities; promote **cottage industries** in rural areas.
- **43A (Socialist):Participation of workers** in management of industries — **42nd Amendment**.

- **43B (Gandhian):** Promotion of **co-operative societies** (management, autonomy, professional) — **97th Amendment, 2011**.
- **44 (Liberal):Uniform Civil Code** throughout India.
- **45 (Liberal):** After 86th: **early childhood care and education** for children **below 6** (the 6–14 part moved to FR **21A**).
- **46 (Gandhian):** Promote **educational & economic interests of SC, ST and weaker sections**; protect from social injustice/exploitation.
- **47 (Gandhian):** Raise **nutrition**, standard of living, **public health**; State to bring about **prohibition** of intoxicating drinks/drugs (except medicinal).
- **48 (Gandhian):** Organise **agriculture & animal husbandry** on modern lines; **prohibit slaughter** of cows, calves and milch/draught cattle.
- **48A (Liberal):** Protect and improve **environment**, forests and wildlife — **42nd Amendment**.
- **49 (Liberal):** Protect **monuments, places and objects** of national importance.
- **50 (Liberal):Separation of judiciary from executive** in the public services of the State.
- **51 (Liberal):** Promote **international peace and security**; just relations; respect for **international law** & treaties; encourage **arbitration** of disputes.

> **Match traps:39A** legal aid ≠ **41** right to work. **43A** workers ≠ **43B** co-operatives. **48** cattle/agriculture ≠ **50** separation of judiciary. **45** now "below 6" (not 6–14 — that is 21A).

DPSP added later (amendment facts)

Later inserts/recasts of Part IV — 42nd, 44th, 86th, 97th.

- **42nd (1976):39A** (legal aid), **43A** (workers' participation), **48A** (environment); recast 39(f).
- **44th (1978):38(2)** (minimise inequalities); also made property a legal right (300A).
- **86th (2002):** Recast **45** (early childhood <6) as 6–14 became FR (21A).
- **97th (2011):43B** (co-operative societies).

PYQ — UPPCS Prelims 2021, Q66

Which one of the following is NOT correctly matched? (Subject — Article)

A. Separation of judiciary from executive — Article 50 B. Promotion of educational and economic interests of SC/ST — Article 46 C. Promotion of Co-operative Societies — Article 43A D. Organisation of Village Panchayats — Article 40

Show answer

Ans: C. Co-operative societies = **Article 43B**; 43A = workers' participation.

PYQ — UPPCS Prelims 2020, Q122

Which one of the following is NOT correctly matched?

A. Article 39A — Equal Justice and free legal aid B. Article 40 — Organisation of Village Panchayats C. Article 44 — Uniform Civil Code D. Article 48 — Separation of Judiciary from Executive

Show answer

Ans: D. Separation of judiciary–executive = **Article 50**; Art. 48 = agriculture / cattle.

PYQ — UPPCS Prelims 2025, Q146

Assertion (A): Directive Principles are important for economic, social and political functions in a modern democratic State. Reason (R): The core objective of Directive Principles is to establish economic and social democracy.

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A) B. (A) is false, but (R) is true C. (A) is true, but (R) is false D. Both (A) and (R) are true and (R) is the correct explanation of (A)

Show answer

Ans: D — Both (A) and (R) are true and (R) is the correct explanation of (A).

Conflict — FR vs DPSP (chronology)

- *Champakam Dorairajan* (1951): FR prevails → **1st Amendment** (15(4)).
- **25th Amendment (1971)** → **Art. 31C:** laws for 39(b)(c) immune from 14/19.
- **42nd Amendment (1976):** extended 31C to **all** DPSP.
- **Minerva Mills (1980):** struck down that extension — **balance** of FR & DPSP is **basic structure**; 31C survives only for **39(b)(c)**.

N.20 Uniform Civil Code — Article 44

- DPSP: State shall **endeavour** to secure a UCC for citizens throughout India. **Non-justiciable.**
- Aim: one common set of personal laws (marriage, divorce, succession (उत्तराधिकार क्रम)) across religions.
- Judicial push: *Shah Bano* (1985), *Sarla Mudgal* (1995), *Shayara Bano* (2017 — triple talaq).
- **Goa** (गोवा) already has a common civil code (Portuguese legacy). **Uttarakhand** (उत्तराखंड) enacted a UCC (2024) — first State in independent India to do so.

N.21 Fundamental Duties — Article 51A (Part IVA)

- **Only Article in Part IVA.** Added by **42nd Amendment, 1976** on the **Swaran Singh Committee (1976)** recommendation; inspired by the **erstwhile USSR** constitution. (Swaran Singh suggested duties + a penalty provision; Parliament dropped the penalty.)
- **Non-justiciable** (no direct legal enforcement), but courts use them to interpret laws; a statute can be enacted to enforce a specific duty.
- Originally **10**; the **11th (51A(k))** added by **86th Amendment, 2002**.
- Apply to **citizens only** (unlike some FRs available to all persons).

The 11 duties (51A a–k) — elaborated

Art. 51A(a–k) — the full list (citizens; 10 + education duty).

- **51A(a):** Abide by the Constitution; respect its **ideals & institutions**, the **National Flag** and the **National Anthem**. Only duty that names Flag/Anthem — *Bijoe Emmanuel* (1986): not singing (while standing respectfully) is not an offence.
- **51A(b):** Cherish and follow the **noble ideals of the freedom struggle**.
- **51A(c):** Uphold and protect the **sovereignty, unity and integrity** of India.
- **51A(d):Defend the country** and render national service when called upon.
- **51A(e):** Promote **harmony and the spirit of common brotherhood**; renounce practices **derogatory to the dignity of women**. Transcends religious/linguistic/regional diversity.
- **51A(f):Value and preserve the rich heritage** of our composite culture. **Trap:** protecting **monuments** as such is **DPSP Art. 49**, not this duty.
- **51A(g):** Protect and improve the **natural environment** — forests, lakes, rivers, wildlife; **compassion for living creatures**. Mirrors DPSP **48A** → environment in **both**.
- **51A(h):** Develop **scientific temper**, humanism and the spirit of inquiry and reform.
- **51A(i):** Safeguard **public property** and **abjure violence**.
- **51A(j):** Strive towards **excellence** in all spheres of individual and collective activity.
- **51A(k):** Parent/guardian to provide **opportunities for education** to a child **6–14 years**. Added by **86th Amendment, 2002**; pairs with **21A** & **45**.

Duties — quick facts

- **Verma Committee (1999)** identified existing legal provisions for enforcing some duties (e.g. Prevention of Insults to National Honour Act; Protection of Civil Rights Act; Wildlife/Forest laws).
- **Not** Fundamental Duties (common wrong options): **pay taxes**, **cast your vote**, **family planning**, **protect monuments** (49 is DPSP), **organise village panchayats** (40 is DPSP), **abolish untouchability** (17 is FR).
- Duties are for **citizens**; DPSP address the **State** — a provision like **environment** can sit in both Parts (**48A** + **51A(g)**).
- **Swaran Singh Committee** members (high-yield): Swaran Singh (Chair), A.R. Antulay, S.S. Ray, C.M. Stephen — **Haridev Joshi** was **not** a member.

> **Match traps:** protection of **monuments** = DPSP **Art. 49**, **not** a duty. Environment appears in **both** DPSP (**48A**) and Duty (**51A(g)**). Providing education 6–14 = Duty **51A(k)** + DPSP **45** + FR **21A**.

PYQ — UPPCS Prelims 2022, Q134

Which of the following is NOT a Fundamental Duty?

A. To protect monuments and places of national importance B. To protect and improve the natural environment C. To safeguard public property D. To respect the National Anthem

Show answer

Logic: Monuments = DPSP Art. 49 — not a Duty. Environment / public property / Anthem are 51A. **Ans: A.** Protecting monuments = **DPSP (Art. 49)**; the rest are 51A duties.

PYQ — UPPCS Prelims 2023, Q21

Which of the following provisions is a part of both the Directive Principles of State Policy and the Fundamental Duties?

A. Guardians to provide opportunity for education to children B. Protection of environment C. Participation of workers in management of industries D. Uniform Civil Code

Show answer

Logic: Environment sits in both **48A** and **51A(g)**. Workers' participation and UCC are DPSP-only; education also pairs but this key is environment. **Ans: B — Protection of environment** (DPSP 48A + Duty 51A(g)). *Also defensible:* education (45/21A + 51A(k)) — UPPCS key = **B**.

PYQ — UPPCS Prelims 2019, Q98

In which of the following are the provisions for the protection and improvement of environment and safeguarding of forests and wildlife found in the Constitution of India?

A. Only in the Directive Principles of State Policy B. Only in the Fundamental Duties C. Both (A) and (B) D. None of the above

Show answer

Ans: C — Both (DPSP 48A + Duty 51A(g)).

Inline PYQ — UPPCS Prelims 2021, Q107

Under the Constitution of India, which of the following is NOT a Fundamental Duty?

A. To vote in General Election B. To develop the scientific temper C. To safeguard public property D. To abide by the Constitution and respect its ideals

Show answer

Ans: A — Voting (गणपूर्ति) is not a Fundamental Duty under Art. 51A.
